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Case Number: 25NWCV02857 Hearing Date: August 28, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

COLONIAL ELECTRIC, INC.,

Plaintiff,

vs.

SDG SANTA FE SPRINGS, LLC, et al.,

Defendants.

Case No.:

25NWCV02857

Hearing Date:

August 28, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF COLONIAL

ELECTRIC, INC.'S MOTION TO COMPEL DEFENDANT DAVID BIRD, INC. DBA BIRDBGROUP CONSTRUCTION TO PROVIDE RESPONSES, WITHOUT OBJECTION, TO (1) FORM INTERROGATORIES - CONSTRUCTION LITIGATION, SET NO. ONE; (2) REQUESTS FOR PRODUCTION OF DOCUMENTS, SET NO. ONE

Background

On August 8, 2025, Plaintiff Colonial Electric, Inc. ("Colonial") filed this action against Defendants SDG Santa Fe Springs, LLC and David Bird, Inc. doing business as Birdgroup Construction ("Birdgroup"), alleging nine causes of action for (1) breach of written contract; (2) open book account; (3) account stated; (4) claim for failure to promptly pay (Business and Professions Code § 7108.5); (5) claim for failure to promptly pay (Civil Code § 8814); (6) goods and services rendered; (7) quantum meruit; (8) unjust enrichment; and (9) foreclosure of claim of mechanics lien.

Colonial now moves for an order compelling Birdgroup to provide answers and documents to Colonial's Requests for Production of Documents, Set No. One, and to provide answers to Colonial's Form Interrogatories - Construction Litigation, Set No. One. Colonial also moves for monetary sanctions in connection with each motion against Birdgroup and its counsel of record, Steven R. Napoles, jointly and severally. Specifically, Colonial seeks sanctions in the amount of \$2,358.70 for the motion to compel form interrogatories and \$3,008.70 for the motion to compel production of documents. Birdgroup did not file an opposition.

Legal Standard

A. Interrogatories

Code of Civil

Procedure section 2030.260, subdivision (a) requires, "[w]ithin 30 days after service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party, unless on motion of the propounding party the court has shortened the

time for response, or unless on motion of the responding party the court has extended the time for response.” When a party fails to serve a timely response to a request for interrogatories, “[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories” and for monetary sanctions. (Code Civ. Proc., § 2030.290, subds. (b)-(c).) The responding party also waives the right to make any objections, including those based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).)

B. Production of Documents

“Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand, and a copy of the response on all other parties who have appeared in the action.” (Code Civ. Proc., § 2031.260, subd. (a).) “If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it ... [t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand.” (Code Civ. Proc., § 2031.300, subd. (a).)

C. Sanctions

Generally, the prevailing party on a discovery motion is entitled to monetary sanctions. (Code Civ. Proc., §§ 2023.030, subd. (a); 2030.290, subd. (c); 2031.300, subd. (b).) However, the Court retains discretion to deny sanctions where it finds the party “acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c); 2031.300, subd. (c).) “Substantial justification” exists when the conduct at issue is “clearly reasonable because it is well grounded in both law and fact” ((Doe v. United States Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1434.)) The party seeking to avoid sanctions bears the burden of proving substantial justification. ((Id. at p. 1435.)) If sanctions are awarded, they must be limited to reasonable expenses, including attorney fees, incurred due to the discovery misuse. (Code Civ. Proc., § 2023.030, subd. (a).)

Discussion

A. Discovery
Requests

Colonial filed two motions to compel discovery responses from Birdgroup. For both motions, Colonial's counsel provides a declaration detailing the history of events. Colonial's counsel explains that he initially propounded discovery on Birdgroup for Form Interrogatories - Construction Litigation, Set No. One, and Requests for Production of Documents, Set No. One, on November 12, 2025, with responses "due on December 16, 2025." (Huber Decl., ¶¶ 2-3, Ex. A.) However, counsel explains that "Defendant failed to serve any response to the Interrogatories [or Production of Documents] on December 16, 2025. No extensions were granted, nor were any requested prior to Plaintiff's initiation of efforts to obtain responses." (Huber Decl., ¶ 3.) "On December 17, 2025, Plaintiff's counsel sent a meet and confer email to Defendant's counsel Steven R. Napoles regarding Defendant's lack of responses and that objections were waived. After the meet and confer, Plaintiff granted a courtesy extension to December 24, 2025, to provide responses, without objection." (Huber Decl., ¶ 4, Ex. B.) Then, "[o]n December 19, 2025, Plaintiff's counsel engaged in a further telephonic meet and confer, in which Mr. Napoles requested, and was provided, an extension to January 9, 2026, for Defendant to provide responses without objection." (Huber Decl., ¶ 5, Ex. C.) "On January 19, 2026, after the second deadline passed with no response, Plaintiff's counsel sent another meet and confer email providing another courtesy extension to January 21, 2026, for Defendant to provide responses." (Huber Decl., ¶ 6, Ex. D.) "On January 22, 2026, having received no response or communication, Plaintiff's counsel telephoned Mr. Napoles and left a voicemail, followed by a written email. Mr. Napoles finally replied stating that responses, without objection, would be provided by January 30, 2026." (Huber Decl., ¶ 7, Ex. E.)

Thereafter, on July 7, 2026, the parties engaged in an Informal Discovery Conference, but Colonial's counsel attests, "[a]s of the filing of this motion," on July 24, 2026, "Defendant has failed to provide any responses to the subject discovery. Defendant's willful refusal to serve responses ... and failure to participate in discovery is a misuse of the discovery process. As the result of Defendant's refusal to provide responses to Plaintiff's proper discovery, which responses are necessary in order for Plaintiff to proceed with meaningful discovery, proceed with depositions, evaluate Defendant's contentions, effectively prosecute this

action or prepare for trial, I had to write several emails and make telephone calls in attempts to resolve these issues. I have also been compelled to make the instant motion." (Huber Decl., ¶ 8.)

Colonial's motion asserts that "Defendant's willful refusal to serve responses to these Interrogatories [and Requests for Production] and failure to participate in discovery is a misuse of the discovery process... Consequently, Plaintiff respectfully requests an order compelling Defendant to serve verified responses to the Interrogatories [and requested production of documents], without objection, and issue joint and several monetary sanctions against Defendant and its counsel Mr. Napoles for [] their misconduct in forcing the bringing of this motion." (Mot., 4:9-16.)

The Court finds that, based on Colonial's motions, it is necessary to compel Birdgroup's responses to the outstanding discovery. The history demonstrates that Birdgroup failed to engage in good faith compliance with the discovery process, hindering Colonial from progressing in the instant case. In light of Birdgroup's failure to file an opposition, the Court grants Colonial's discovery motions and finds that sanctions are warranted.

B. Sanctions Are Warranted

Colonial's counsel explains that his hourly billing rate is \$350.00, given his "11 years experience as a trial attorney." (Huber Decl., ¶ 9.)

For the motion to compel form interrogatories, Colonial's counsel explains that "4½ hours of attorney time has been spent in the meet and confer process and researching and preparing Plaintiff's motion to compel Defendant to comply with Plaintiff's discovery request." (Huber Decl., ¶ 9.) Colonial's counsel also "anticipate[s] that it will take an additional 2 hours to review Defendant's anticipated opposition to the motion, prepare a reply brief, and prepare for and attend the hearing of the motion. In addition, the filing fee incurred for the motion was \$60.00, the e-filing fee was \$17.95 and the court technology fee was \$5.75, for a total of \$83.70 in costs. This amounts to a total \$2,358.70 in attorney fees and costs that Plaintiff has incurred in making its motion to compel." (Ibid.)

For the motion to compel requests for production of documents, Colonial's counsel explains that "3½ hours of attorney time has been spent in the meet and confer process and researching and preparing Plaintiff's motion to compel Defendant to comply with Plaintiff's discovery Requests." (Huber Decl., ¶ 9.) Colonial's counsel also "anticipate[s] that it will take an additional 2 hours to review Defendant's anticipated opposition to the motion, prepare a reply brief and prepare for and attend the hearing of the motion. In addition, the filing fee incurred for the motion was \$60.00, the e-filing fee was \$17.95 and the court technology fee was \$5.75, for a total of \$83.70 in costs." (Ibid.)

Colonial's counsel also requests "[a]n additional mandatory issuance of the \$1,000.00 sanction as required under Code of Civil Procedure section 2023.050," for a "total of \$3,008.70 in attorney fees and costs that Plaintiff has incurred in making its motion to compel." (Ibid.)

The Court finds the requested hourly fee reasonable. However, given that Birdgroup did not file an opposition to the motions and the two hearings will take place on the same day, the Court finds that the requested hours are too high. Specifically, the Court awards Colonial's counsel one hour in total for attending the hearing on the instant motions, and no attorney time for the anticipated opposition and reply. The Court finds that awarding Colonial fees for a total of 9 hours of time is reasonable. Accordingly, the Court awards Colonial fees in the amount of \$3,150.00, comprising the 9 hours expended on the motions at a rate of \$350 per hour. The Court also finds the requests for costs reasonable, and awards Colonial costs in the total amount of \$167.40.

The Court notes that Colonial also seeks additional sanctions under Code of Civil Procedure section 2023.050, subdivision (a). Specifically, that statute provides that "[n]otwithstanding any other law, and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose a one-thousand-dollar (\$1,000) sanction, payable to the requesting party, upon a party, person, or attorney if, upon reviewing a request for a sanction made pursuant to Section 2023.040, the court finds any of the following: (1) The party, person, or attorney did not respond in good faith to a request for the production of documents ... or to an inspection demand ... [or] (3) The party, person, or attorney failed to confer in person, by telephone, letter, or other means of communication in writing, as defined in Section 250 of the Evidence Code, with the party or

attorney requesting the documents in a reasonable and good faith attempt to resolve informally any dispute concerning the request.”

Colonial asserts that “there is no excuse or justification for Defendant and its counsel's continued refusal to provide verified responses to the subject discovery. The Declaration of Michael J. Huber submitted herewith attests to the efforts expended on the part of Plaintiff to avoid the instant motion.” (Mot., 5:26-6:1.) Further, Colonial contends that “[i]t is evident from the facts presented that Defendant will not comply with this authorized method of discovery absent a court order and the imposition of sanctions, as Defendant continues to ignore binding authority that requires it to provide responses, without objection, to the overdue and outstanding discovery.” (Mot., 6:3-6.) Thus, “[p]ursuant to the Code of Civil Procedure ... and the power of this court to impose monetary sanctions against the losing party on a motion to compel responses to request for production, Plaintiff respectfully requests that given the multiple attempts by Plaintiff to avoid this motion, and the lack of any responses whatsoever, sanctions be awarded to Plaintiff, and against Defendant and its counsel of record Steven R. Napoles.” (Mot., 6:14-18.)

Although the Court already granted sanctions for attorney time expended on the instant motions, the Court will also grant, as to Birdgroup, the additional \$1,000 sanction under Code of Civil Procedure section 2023.050, subdivision (a) requested by Colonial. Birdgroup's failure to provide any discovery to Colonial after several extensions demonstrates a lack of good faith. Birdgroup's failure to oppose the instant motions further supports the conclusion that Birdgroup has failed to act in good faith. Thus, the Court grants Colonial's additional \$1,000 sanctions request as to Birdgroup.

Conclusion

Based on the foregoing, Colonial's motion to compel answers and documents to Requests for Production of Documents, Set No. One, and to compel answers to Form Interrogatories - Construction Litigation, Set No. One, is GRANTED. Birdgroup is ordered to provide code-compliant, verified responses and documents, without objections, to Colonial's Requests for Production of Documents, Set No. One, and answers to Form Interrogatories - Construction Litigation, Set No. One, within 30 days of the date of this Order.

Birdgroup is ordered to pay Colonial

sanctions in the amount of \$4,317.40 within 30 days of the date of this Order.

Birdgroup's counsel of record, Steven

R. Naples, is ordered to pay Colonial sanctions in the amount of \$3,317.40 within 30 days of the date of this Order.

Colonial is ordered to provide notice of this Order.

DATED: August 28, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court